

25CV07929 Louie Carnevale Family Trust Dated April 15, 2022 vs Ramsey Asphalt Construction Corp

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-17

Motion: Demurrer

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Tentative Ruling: Louie Carnevale Family Trust Dated April 15, 2022 vs Ramsey Asphalt Construction Corp

Case Number

25CV07929

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/17/2026 - 10:00

Nature of Proceedings

Demurrer

Tentative Ruling

Plaintiff by Anthony Niccoli

Defendant by Airene Williamson

RULING

The Demurrer is **OVERULED**. The Answer will be filed by June 26. This is a Court trial. The Pretrial Date of 7/22/26 at 11:30 is confirmed; the trial commences at 1:30pm on 7/22/26 (or as soon thereafter as the Court's calendar permits). Trial will continue on 7/23, 7/24 and 7/27 [if necessary].

Background

Complaint filed 12/18/25; served on 2/2/26. Alleges that on or about November 3, 2022, Plaintiff entered into a written proposal with Ramsey Asphalt Construction Corp. pursuant to which Plaintiff was to provide labor, services, equipment or materials, to perform paving work for the property located at 805 Romero Canyon Road, Santa Barbara, California 93108. Plaintiff alleges that Ramsey breached the contract and warranty and is alleging damages in the amount of \$13,900.00.

At the calendar call on 4/22/26 only the counsel for Defendant appeared; the Court confirmed the Pretrial will commence at 11:30pm on 7/22/26; trial will commence at 1:30pm (or as soon thereafter as the Court's calendar permits); it is a 3-day court trial. Formal Notice of those rulings was given by the defense lawyer to Plaintiff's lawyer on 6/5/26 – 1 ½ months after the Case Management Conference, when counsel was ordered to give notice to Plaintiff's lawyer.

Demurrer

Was filed 4/3/26; 7 pages; summarized: The demurrer is brought pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), on the grounds that:

The Second Cause of Action for Quantum Meruit fails to state facts sufficient to constitute a cause of action; and

The Fourth Cause of Action for Open Book Account fails to state facts sufficient to constitute a cause of action; and

The Fifth Cause of Action for Breach of Warranty fails to state facts sufficient to constitute a cause of action; and

The foregoing causes of action are uncertain, ambiguous, and unintelligible.

Opposition

Filed 6/4/26; 10 pages; read and considered.

Reply

Filed 6/5/26; 7 pages; summarized. Plaintiff's Opposition confirms the very defects identified in Ramsey's Demurrer. This is not a complex construction defect action. It is a

straightforward dispute involving a single paving project, a single written proposal, and alleged damages of approximately \$13,900. Plaintiff alleges Ramsey performed paving work, Plaintiff was dissatisfied with the result, and Plaintiff incurred damages. Those facts may support a breach of contract claim. They do not automatically support claims for quantum meruit, open book account, or breach of warranty. Plaintiff does not identify allegations presently contained in the Complaint that satisfy the elements of the challenged causes of action. Instead, Plaintiff repeatedly argues that it could add facts concerning account records, dates of completion, warranty notices, repair requests, specific defects, and damages. These arguments are not defenses to the Demurrer; they are admissions that the Complaint is deficient. Each proposed amendment Plaintiff identifies is a concession that the necessary facts are absent from the operative pleading. Because the Second,

Fourth, and Fifth Causes of Action fail to state facts sufficient to constitute causes of action, the Demurrer should be sustained.

The Court's Conclusions

At the outset this case appears to be governed by the rules of limited civil litigation, and a general demurrer must be filed within the initial 30-day window for responding to the complaint. It appears that the complaint was personally served on 2/2/26 and the 30 day window expired on 3/2/26. This general demurrer was filed too late on 4/3/26 albeit the excuse appears to be that moving party, in a declaration testifies, "I have reached out to Plaintiff on February 12, 2026, to engage in a meet and confer regarding Defendant's planned Demurrer and Motion to Strike. I have not received any responses or call back from Plaintiff's counsel to date [dated 3/2/26]." Once filed, the Court must schedule the hearing no more than 35 days from the filing date, or the next available Court date.

The Court has elected to ignore the technicalities of limited civil litigation.

Defendant's Demurrer improperly asks the Court to resolve merits issues and evidentiary disputes at the pleading stage. The Complaint alleges a straightforward construction dispute arising from Defendant's paving work at Plaintiff's property. The written proposal attached as Exhibit A identifies the paving work, the Project, the payment terms, and Defendant's express 3 year warranty on all work. Plaintiff alleges that Defendant's work failed to meet the required quality of workmanship, that Plaintiff notified Defendant within the warranty period and requested repairs, that Defendant failed to satisfactorily correct the issues, and that Plaintiff sustained damages of approximately \$13,900. Defendant does not demur to Plaintiff's breach of contract claim. Instead, Defendant attacks alternative common count theories and a warranty claim that is expressly supported by Exhibit A. Plaintiff is not required to prove its claims, plead evidentiary detail, or elect between potentially available remedies. The challenged causes of action provide Defendant fair notice of the claims and the amount sought. This is very simple litigation. The Demurrer should be overruled.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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